

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 2, Honorable Amber Rosen, Presiding
Audrey Nakamoto, Courtroom Clerk

191 North First Street, San Jose, CA 95113
Telephone 408.882-2120

PROBATE LAW AND MOTION TENTATIVE RULINGS

DATE: June 4 , 2026

TIME: 10:00 A.M.

**TO CONTEST THE RULING: YOU MUST DO THE FOLLOWING OR NO
OBJECTIONS WILL BE HEARD – see California Rule of Court 3.1308(a)(1) and
Civil Local Rule 8.D:**

(1) Call the Court at (408) 808-6856 before 4:00 P.M.

**(2) Notify the other side by phone or email before 4:00 P.M. that you plan to
appear and contest the ruling**

FINAL ORDERS: The prevailing party shall prepare the order unless otherwise
ordered. (See California Rule of Court 3.1312.)

TO APPEAR AT THE HEARING: The Court strongly prefers in person appearances.
If you must appear virtually, click on the below link or copy and paste into your internet
browser and scroll down to Department 2.

https://www.sccscourt.org/general_info/ra_teams/video_hearings_teams.shtml

COURT REPORTERS: The court does not provide official court reporters for
civil/probate law and motion hearings. See court website for policy and forms for
court reporters at hearing

**State and local Court Rules prohibit recording of court proceedings without a Court
order.**

TROUBLESHOOTING TENTATIVE RULINGS

If do not see this week's tentative rulings, they have either not yet been posted or
your web browser cache (temporary internet files) is accessing a prior week's rulings.
"REFRESH" or "QUIT" your browser and reopen it, or adjust your internet settings to
see only the current version of the web page. Your browser will otherwise access old
information from old cookies even after the current week's rulings have been posted.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	21PR190185	THE MASAO SUMIDA 2013 TRUST, dated October 24, 2013, as amended and restated on August 5, 2019	Click or scroll to line 1 for tentative ruling. Court will issue the final order.
LINE 2	25PR200331	THE MEZZETTI FAMILY LIFE INSURANCE TRUST	Click or scroll to line 2 for tentative ruling. Court will issue the final order.

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PROBATE LAW AND MOTION TENTATIVE RULINGS

LINE 3			
LINE 4			
LINE 5			
LINE 6			
LINE 7			
LINE 8			
LINE 9			
LINE 10			
LINE 11			
LINE 12			
LINE 13			
LINE 14			
LINE 15			
LINE 16			
LINE 17			
LINE 18			
LINE 19			
LINE 20			
LINE 21			
LINE 22			
LINE 23			
LINE 24			
LINE 25			
LINE 26			
LINE 27			
LINE 28			
LINE 29			
LINE 30			

Calendar line 1

Case Name: THE MASAO SUMIDA 2013 TRUST, dated October 24, 2013, as amended and restated on August 5, 2019

Case No.: 21PR190185

INTRODUCTION

In May 2021, Petitioners Leland Sumida, Ione Low, and Noreen Sumida (“Petitioners”) initiated this case by filing a petition to determine the validity of the second amendment to the Masao Sumida 2013 Trust, executed on August 5, 2019. The amendment changed the trust disposition such that Jarred Sumida (“Respondent”) would receive the entire trust estate upon the death of the settlor, Masao Sumida (“Decedent”).¹ In October 2022, Petitioners filed a petition to remove and surcharge Respondent as trustee.

On June 13, 2022, Respondent filed a petition to compel Leland Sumida to account as former trustee of the Masao Sumida and Eiko Sumida Living Trust and as attorney-in-fact for Decedent while Decedent was alive.²

Currently before the court is Respondent’s motion for leave to file a combined amended petition and cross-complaint. The motion is unopposed.

Trial is presently set for June 15, 2026.

DISCUSSION

I. Legal Standards

A. Leave to Amend

Code of Civil Procedure sections 473, subdivision (a), and 576³ provide that the court “may, in the furtherance of justice,” allow a party to amend any pleading. “It is well established that ‘California courts have “a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.” [Citation.] Indeed, “it is a rare case in which ‘a court will be justified in refusing a party leave to amend his [or her] pleading so that he [or she] may properly present his [or her] case.’ ”[Citation.]’ [Citation.] Thus, absent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail. [Citation.]” (*Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154, 1163.) Generally, leave to amend must be liberally granted [citation], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation. [Citation.]” (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.)

¹ Petitioners are Decedent’s children and Respondent is Decedent’s grandchild.

² Eiko Sumida, Decedent’s wife, passed away in 2017. Decedent passed away in 2021.

³ All further undesignated statutory references are to the Code of Civil Procedure.

“ ‘Leave to amend a complaint is thus entrusted to the sound discretion of the trial court. . .’ [Citations.]” (*Branick v. Downey Savings & Loan Assn.* (2006) 39 Cal.4th 235, 242.) “[I]t is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment. [Citation.]” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.) The court does not abuse its discretion by denying leave to amend where the facts stated do not constitute a cause of action. (See *IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 654.)

B. Leave to File a Cross-Complaint

With respect to permissive cross-complaints, a party against whom a cause of action has been asserted in a complaint may file a cross-complaint against another person alleged to be liable if the cause of action asserted in the cross-complaint arises out of the same transaction or occurrence as the cause of action in the original complaint. (§ 428.10, subd. (b).) A party can file a cross-complaint against parties other than the plaintiff without leave of court at any time before the court has set a date for trial. (§ 428.50, subd. (b).) But, where the trial date has been set, the party must seek leave of court to file a cross-complaint. (§ 428.50, subd. (c).)

With respect to compulsory cross-complaints, “[e]xcept as otherwise provided by statute, if a party against whom a complaint has been filed and served fails to allege in a cross-complaint any related cause of action which (at the time of serving his answer to the complaint) he has against the plaintiff, such party may not thereafter in any other action assert against the plaintiff the related cause of action not pleaded.” (§ 426.30, subd. (a).)

But, “[a] party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action.” (§ 426.50.)

II. Analysis

Respondent seeks to file a first amended petition and cross-complaint. The petition to be amended is Respondent’s June 2022 petition for accounting.

Rules of Court, rule 3.1324(b), governing motions to amend, requires a declaration which explains “(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.” Here, Respondent has provided the declaration of his counsel addressing these elements.

The amended petition “substitutes Ione K. Low and Noreen Sumida as true-name respondents in place of Does 1 and 2 on the causes of action for Financial Elder Abuse (FAP ¶ 88), Conversion (FAP ¶ 89), Punitive Damages (FAP ¶ 98), Attorney’s Fees (FAP ¶ 99), and Probate Code § 259 Remedies (FAP ¶ 100; Prayer ¶¶ 16–17); (ii) adds causes of action for Physical Elder Abuse under Welfare & Institutions Code §§ 15610.05, 15610.07, 15610.57, and 15610.53 (FAP ¶ 90); Conspiracy (FAP ¶ 96); and Aiding and Abetting (FAP ¶ 97); (iii) adds

specific factual allegations concerning threats and verbal abuse (FAP ¶¶ 31-34), the draining of Masao's Wells Fargo bank account (FAP ¶¶ 35-48), and the theft of Masao's mail (FAP ¶¶ 49-52); (iv) adds specific prayer items for compensatory damages under Welf. & Inst. Code § 15657.5(a) (Prayer ¶ 10), punitive damages under Welf. & Inst. Code § 15657.5 and Civil Code § 3294 (Prayer ¶ 11), treble damages under Civil Code § 3345(b) (Prayer ¶ 12), prejudgment interest (Prayer ¶ 13), and restitution and disgorgement (Prayer ¶ 14); and (v) includes a demand for jury trial on the legal causes of action (FAP at p. 29)." (Declaration of Scott Fraser in Support of Motion for Leave to Amend ("Fraser Decl."), ¶ 27.)

Respondent's counsel declares that he learned of the basis for the amendments in January 2026, when Petitioners produced text messages in response to Respondent's discovery requests and in March 2026 when Respondent took the depositions of Ione Low and Leland Sumida. (Fraser Decl., ¶¶ 11-25.) Finally, Respondent's counsel declares that the additions to the amended petition and cross-complaint concern transactions made during the same period of February to April 2021 when Decedent received caregiver services and the 2019 restatement that are the subject of the other petitions filed in this case. (Fraser Decl., ¶ 33.) He contends that no new discovery is anticipated. (*Ibid.*)

Here, Petitioners do not oppose the motion and, therefore do not point to any prejudice in granting the motion, nor do they contend that the added causes of action do not relate to the same transaction or occurrence as the other pleadings in this case. Accordingly, the motion is GRANTED.

CONCLUSION

The motion for leave to file a first amended petition and cross-complaint is GRANTED.

Calendar line 2

Case Name: THE MEZZETTI FAMILY LIFE INSURANCE TRUST

Case No: 25PR200331

INTRODUCTION

Petitioner Jose Miguel Mezzetti (“Petitioner”) initiated this action for construction of the Mezzetti Family Life Insurance Trust (“MFLIT”). The MFLIT was created by husband and wife settlors Constance Mezzetti and Robert Mezzetti, Sr. (“Settlors”) on September 1, 1994. In or around September 1994, Settlers also applied for a Guardian whole life insurance policy to fund the MFLIT. Petitioner contends that the MFLIT was irrevocable from its inception and he seeks an order determining same. He also seeks an accounting and an order that Respondent Robert Mezzetti, II (“Respondent”), trustee of the MFLIT, may not use trust funds in the instant litigation.

Currently before the court is Respondent’s demurrer to Petitioner’s amended petition filed February 9, 2026. Respondent filed his demurrer on April 1, 2026. Petitioner filed an opposition, Respondent filed a reply and evidentiary objections, and Petitioner filed a response to Respondent’s evidentiary objections.

BACKGROUND

Settlors separated in the late 1970s but never divorced. Robert, Sr.⁴ established extramarital romantic relationships with Kathy Hatcher and others. (*Ibid.*) According to the amended petition, Settlers sought to protect their assets from so-called “Marvin v. Marvin”⁵ claims and professional malpractice claims due to Robert, Sr.’s work as an attorney.

Petitioner alleges that the 2002 Unsigned MFLIT Instrument was provided to Petitioner and allows for the distribution of the Gurdian Life Insurance Policy in equal shares. Petitioner and Respondent received and signed Acknowledgement of Notice Receipt of *Crummey*⁶ Demand Rights. On August 5, 2015, Robert Sr. and Respondent as trustee and power of attorney for Constance who was incapacitated in 2006, signed a Declaration of Lost Instrument indicating that the original MFLIT had been lost.

Constance passed away on March 11, 2017. No trustee’s notice pursuant to Probate Code section 16061.7 was sent concerning the MFLIT. Robert Sr. Died on October 22, 2024. Petitioner alleges Respondent submitted a death benefit claim to the Guardian Policy which was paid out on December 2, 2024.

⁴ Because some of the individuals involved in this case share the same last name, the court will refer to them by their first names. No disrespect is intended.

⁵ *Marvin v. Marvin* (1976) 18 Cal.3d 660.

⁶ *Crummey v. Commissioner* (9th Cir. 1968) 397 F.2d 82.

On September 5, 2025, Respondent filed a demurrer targeting Petitioner’s initial petition, which alleged the same cases of action raised in the amended petition. On January 12, 2026, this court filed its written order sustaining the demurrer with leave to amend based on the running of the statute of limitations. Based on the allegations in the initial petition and its attachments, the court determined that a trustee’s notice had been served on Petitioner on November 21, 2024, yet the initial petition was not filed until June 30, 2025, more than the 120 days provided by Probate Code section 16061.8. (January 12, 2026 Order, p. 12:1-6.) The court further found that the initial petition was, in effect, a trust contest governed by Probate Code section 16061.8. (*Id.* at p. 11:5-12.) The court granted leave to amend “for Petitioner to more adequately demonstrate that the MFLIT was irrevocable from inception.” (*Id.* at p. 13:1-2.)

DISCUSSION

I. Respondent’s Request for Judicial Notice

Respondent requests judicial notice of the following documents: (1) Petitioner’s initial petition filed June 30, 2025 in the instant case, (2) this court’s order, filed January 12, 2026 sustaining Respondent’s prior demurrer, and (3) Petitioner’s amended petition filed February 9, 2026. The request for judicial notice is GRANTED in its entirety pursuant to Evidence Code section 452, subdivision (d).

II. Respondent’s Evidentiary Objections

Concurrently with his opposition to the demurrer, Petitioner filed the declaration of his counsel indicating that counsel included a statement in the introduction to the amended petition indicating that changes that were made to the amended petition were made in response to the court’s January 12, 2026 order sustaining the demurrer and attaching Exhibit A, the Legislative Counsel’s Digest for Assembly Bill 1745 (2021-2022 Reg. Sess.), which amended Probate Code section 16061.8.

Respondent filed evidentiary objections to the declaration as a whole, certain portions thereof, and the exhibit. Respondent’s objection to the entirety of the declaration is SUSTAINED as the court cannot consider extrinsic evidence on demurrer. (See *Nealy v. County of Orange* (2020) 54 Cal.App.5th 594, 597, fn. 1 [on demurrer, court’s focus is limited to the facts alleged on the face of the pleading and its exhibits, and any facts subject to judicial notice]; *SKF Farms v. Super. Ct.* (1984) 153 Cal.App.3d 902, 905 [“A demurrer tests the pleadings alone and not the evidence or other extrinsic matters.”].) Notably, although Petitioner argues in his response to the evidentiary objections that the court can take judicial notice of evidence in connection with a demurrer, Petitioner does not request judicial notice of either the declaration or the exhibit and a declaration is generally not the proper subject of judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 [court cannot consider substance of declarations in addressing demurrer].)

In light of this conclusion, the court need not address Respondent’s remaining objections.

III. Legal Standard

As relevant to the instant case, “[t]he party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds: (e) The pleading does not state facts sufficient to

constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e).)⁷ A demurrer may be utilized by “[t]he party against whom a complaint [] has been filed” to object to the legal sufficiency of the pleading as a whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by statute. (§§ 430.10, 430.50, subd. (a).)

The court in ruling on a demurrer treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214.) In ruling on a demurrer, courts may consider matters subject to judicial notice. (*Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 743, 751.) Evidentiary facts found in exhibits attached to a complaint can be considered on demurrer. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.)

IV. Merits of the Demurrer

As with his prior demurrer, Respondent’s primary contention on demurrer is that the amended petition is barred by the statute of limitations. He contends that, in response to the court’s January 12, 2026 demurrer order, Petitioner has simply removed allegations that established that his initial petition was time-barred. But, he asserts, Petitioner may not remove fatal allegations from the amended petition to avoid the instant demurrer.

At the outset, the court notes that, in its prior order, the court held that Petitioner had failed to adequately plead that the MFLIT was irrevocable from its inception. (See, e.g., January 12, 2026 Order, p. 8:11-13.) This finding was integral to the court’s order sustaining the demurrer on statute of limitations grounds because Petitioner had argued that the statute of limitations contained in Probate Code section 16061.8 applies only to trusts that were previously revocable but became irrevocable upon the death of one or more settlors.⁸ The court also determined that the effect of the initial petition rendered it a contest within the meaning of the

⁷ All further undesignated statutory references are to the Code of Civil Procedure.

⁸ Probate Code section 16061.8 provides, “A person upon whom the notification by the trustee is served *pursuant to paragraph (1) of subdivision (a) of Section 16061.7*, whether the notice is served on the person within or after the time period set forth in subdivision (f) of Section 16061.7, shall not bring an action to contest the trust more than 120 days from the date the notification by the trustee is served upon the person, or 60 days from the date on which a copy of the terms of the trust is delivered pursuant to Section 1215 to the person during that 120-day period, whichever is later.” (Italics added.) Probate Code section 16061.7, subdivision (a)(1) provides, “A trustee shall serve a notification by the trustee as described in this section in the following events: . . . [w]hen a revocable trust or any portion thereof becomes irrevocable because of the death of one or more of the settlors of the trust, or because, by the express terms of the trust, the trust becomes irrevocable within one year of the death of a settlor because of a contingency related to the death of one or more of the settlors of the trust.”

relevant case law. (January 12, 2026 Order, p. 11:8-10.) Finally, it found that, in light of these two conclusions, the statute of limitations barred the initial petition, but it may be possible for Petitioner to amend to allege that the trust was irrevocable from its inception, which, if the court made such a determination, would mean that Probate Code section 16061.8 would not apply. (January 12, 2026 Order, pp. 12:4-6, 12:27-13:2.)

A. The Court Has Already Determined that Petitioner’s Action is a Contest and Petitioner May Not Remove Allegations to Change this Fact

Both parties devote a significant portion of their briefs to the question of whether the amended petition is a trust contest governed by Probate Code section 16061.8. (See Prob. Code, § 16061.8 [“A person upon whom the notification by the trustee is served . . . shall not bring an *action to contest* the trust more than 120 days from the date the notification . . .”], italics added.) But, the court has already concluded that the petition constituted a trust contest because the practical effect of the petition was to assert that the MFLIT was irrevocable, whether Robert, Sr. and Respondent could amend the MFLIT, and whether Petitioner and Kathy Hatcher are entitled to a distribution under the terms of the MFLIT. (January 12, 2026 Order, pp. 9:18-11:12.)

In the amended petition, Petitioner has removed allegations relating to the 2021 and 2023 amendments. He has also removed his requests for relief regarding the distribution provisions of the amendments. Petitioner takes the position that the amended petition is no longer a contest because the offending provisions have been removed. Respondent contends that Petitioner may not remove fatal allegations that were contained in the initial petition to avoid a demurrer to the amended petition. Respondent is correct.

Respondent relies on two older cases, *Owens v. Traverso* (1954) 125 Cal.App.2d 803 (*Owens*) and *Wennerholm v. Stanford University School of Medicine* (1942) 20 Cal.2d 713 (*Wennerholm*). As explained in *Wennerholm*, “[i]f any verified pleading contains an allegation which renders a complaint vulnerable, the defect cannot be cured simply by omitting the allegation, without explanation, in a later pleading. [Citation.]” (*Wennerholm, supra*, 20 Cal.2d at p. 716.) In *Owens*, the court similarly stated, “It is undoubtedly a general rule of law that an amended pleading takes the place of the original, and that thereafter the superseded complaint performs no function as a pleading. [Citations.] But to this general rule there is an equally well settled exception. This exception is to the effect that if in the prior verified complaint there are allegations destructive of the cause of action, the defect cannot be remedied by simply omitting, in subsequently filed pleadings, without proper explanation, such allegations.” (*Owens v. Traverso* (1954) 125 Cal.App.2d 803, 808.) In such a situation, the court may read the prior allegations into the amended pleading and consider them on demurrer. (*Ibid.*)

Despite the age of Respondent’s cases, they remain good law. “Under the sham pleading doctrine, plaintiffs are precluded from amending complaints to omit harmful allegations, without explanation, from previous complaints to avoid attacks raised in demurrers or motions for summary judgment. (See *Hendy v. Losse* (1991) 54 Cal.3d 723, 742-743 [affirming an order sustaining defendants’ demurrer without leave to amend when the plaintiff filed an amended complaint omitting harmful allegations from the original unverified complaint]; see also *Colapinto v. County of Riverside* (1991) 230 Cal. App. 3d 147, 151 [‘If a party files an amended complaint and attempts to avoid the defects of the original complaint by either omitting

facts which made the previous complaint defective or by adding facts inconsistent with those of previous pleadings, the court may take judicial notice of prior pleadings and may disregard any inconsistent allegations.’].) A noted commentator has explained, ‘Allegations in the original pleading that rendered it vulnerable to demurrer or other attack cannot simply be omitted without explanation in the amended pleading. The policy against sham pleadings requires the pleader to explain satisfactorily any such omission.’ [Citation.]” (*Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 425-426.)

Here, the amended petition continues to seek a ruling that the MFLIT was irrevocable from its inception. The practical effect of the amended petition remains that the amendments to the MFLIT would be rendered invalid by such a determination. And, the court may consider the existence of the amendments, in addition to the Probate Code section 16061.7 notice in connection with the instant demurrer under the above authorities. Contrary to Petitioner’s arguments, removing the allegations regarding the MFLIT amendments from the amended petition is exactly the type of conduct the sham pleading doctrine was meant to avoid. Petitioner’s explanation in the introduction of the amended petition that he amended his petition as a result of this court’s prior order sustaining the demurrer does not excuse the removal of the allegations regarding the amended petition. Notably, the court did not allow amendment to remove allegations, it allowed amendment so that Petitioner could properly allege that the trust was irrevocable from its inception.

As discussed above, the court already determined that the statute of limitations under Probate Code section 16061.7 barred the petition because it failed to adequately allege that the MFLIT was irrevocable from its inception and, therefore the statute of limitations contained in Probate Code section 16061.8 applied on the face of the petition and its attachments. Petitioner cannot remove the allegations regarding the service of the Probate Code section 16061.7 notice or the allegations that rendered the initial petition a trust contest to alter that conclusion.⁹ Accordingly, the court will consider whether the amended petition now properly alleges that the MFLIT was irrevocable from its inception.

B. The Amended Petition Adequately Alleges that the MFLIT Was Irrevocable From Its Inception

As discussed in the court’s order on the prior demurrer, Probate Code section 15400 provides, “Unless a trust is expressly made irrevocable by the trust instrument, the trust is revocable by the settlor. This section applies only where the settlor is domiciled in this state when the trust is created, where the trust instrument is executed in this state, or where the trust instrument provides that the law of this state governs the trust.”

Petitioner argues that the court cannot apply the Probate Code section 15400 presumption on demurrer because it is a rebuttable presumption. “And[,]” she contends “a demurrer is not an evidentiary motion to which such a presumption may be applied. [Citation.]” (*Estate of Tarlow* (2025) 109 Cal.App.5th 124, 131 [discussing presumption that disclaimers are valid].) The court

⁹ For the same reason, the court rejects Petitioner’s argument that the allegations in the amended petition no longer constitute a trust contest and the allegations are now more akin to those in *Packard v. Packard*, *supra*, 108 Cal.App.5th 1284.

implicitly rejected this argument in its January 12, 2026 Order. (See January 12, 2026 Order, p. 7:23-26 [invoking the presumption and indicating that to overcome the presumption, Petitioner must plead facts showing that the original MFLIT indicated that it was irrevocable].)

As noted above, Petitioner contends that the original MFLIT has been lost. (Amended Petition, ¶ 17.) In the compendium of exhibits filed with the amended petition, Petitioner provides the declaration of lost trust instrument signed by Robert, Sr. and Respondent as Constance's attorney-in-fact. (See Compendium of Exhibits in Support of Amended Petition, Ex. 3.) Petitioner asserts that Respondent lacked authority to sign the document on behalf of Constance and Constance's intent was not adequately recorded in the declaration of lost trust instrument. (Amended Petition, ¶ 18.) The amended petition further alleges that life insurance trusts are typically irrevocable trusts and that the settlors intended to protect the trust assets from taxes and creditors, such as Robert, Sr.'s paramours or clients who might assert professional malpractice claims. (Amended Petition, ¶¶ 9, 19-20.)

The amended petition further indicates that Petitioner and Respondent received *Crummey* notices in 2002, indicating that the original MFLIT contained *Crummey* provisions, which Petitioner pleads "are a specific mechanism used in trusts and estate planning to ensure that gifts made to an irrevocable trust qualify for the annual gift tax exclusion under 26 USC § 2503." (Amended Petition, ¶ 22.)¹⁰ Finally, the amended petition indicates that the fact that no Probate Code section 16061.7 notice was sent out upon Constance's death suggests that the MFLIT was irrevocable and that the settlors already had a revocable trust in place at the time the MFLIT was executed and there would be little need for a second revocable trust. (Amended Petition, ¶¶ 23-24.) These allegations are sufficient to allege that the trust was irrevocable.

Having found that the amended petition adequately alleges that the MFLIT was irrevocable from its inception, the court cannot find that the statute of limitations bars the

¹⁰ As explained in one estate planning treatise, "Most life insurance trusts will give the beneficiaries current "Crummey" withdrawal powers. The trust instrument will then include provisions for the disposition of any income that remains after the exercise of the "Crummey" powers. Both the attorney and the settlor should bear in mind that "Crummey" powers are not usually exercised. To the extent that the power is not exercised, gifts to the trust by the settlor or others will be available for payment of premiums by the trustee. . . . The trust instrument will typically give the trustee the duty of applying so much of the net income of the trust remaining after any payments to satisfy exercised "Crummey" withdrawal powers to pay premiums on any policies of life insurance on the settlor's life which are part of the trust estate." (3 California Wills & Trusts § 115.08, fn. omitted.) The treatise further explains that most life insurance trusts are irrevocable. (*Ibid.*) "By placing life insurance policies in an Irrevocable Life Insurance Trust . . . estate tax consequences may be avoided. The policy proceeds will pass outside the decedent's gross estate yet will benefit his or her heirs. If the policy proceeds are payable to an irrevocable trust and the trustee has a legally binding obligation to pay taxes, debts, or other charges against the estate, then the amount of the proceeds necessary to pay the charges are includible in the gross estate." (5 California Insurance Law & Practice § 71.06.)

amended petition as a matter of law.¹¹ “ ‘A demurrer on the ground of the bar of the statute of limitations will not lie where the action may be, but is not necessarily barred.’ [Citations.] It must appear clearly and affirmatively that, upon the face of the complaint, the right of action is necessarily barred. [Citations.] This will not be the case unless the complaint alleges every fact which the defendant would be required to prove if he were to plead the bar of the applicable statute of limitation as an affirmative defense. [Citation.]” (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 881.) Here, even if the omitted allegations are read into the amended petition, the amended petition pleads that the MFLIT was irrevocable from its inception. The demurrer is OVERRULED as to the first cause of action.

In his demurrer, Respondent also argues that the remaining causes of action fail because they are based on the trust construction cause of action. The court in its prior order found that the remaining two causes of action need not be specifically discussed because they are tied to the first cause of action. (See January 12, 2026 Order, p. 12:7-11.) Accordingly, because the court finds that the first cause of action survives the demurrer, the demurrer is OVERRULED as to the second and third causes of action.

CONCLUSION

The demurrer is OVERRULED.

¹¹ This finding is without prejudice to Respondent raising the statute of limitations or the Probate Code section 15400 at trial or on an evidentiary motion.